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#16

COMMERFORD INSPECTION, INC. v. HEATHER CHRISTENSEN

CASE NO.: 25NWCV01393

HEARING: Tuesday, July 14, 2026, at 9:30 AM

Plaintiff COMMERFORD INSPECTION, INC.'s Motion for a Court

Order Compelling Non-Party Witness PROFESSIONAL INSPECTION AND TESTING, INC's

Compliance with Plaintiff's Deposition Subpoena for Production of Business

Records is GRANTED.

Moving party to give notice.

Background

On April 21, 2025, Plaintiff COMMERFORD INSPECTION, INC.

("Plaintiff") filed this action against Defendants HEATHER CHRISTENSEN

("Defendant"); HLS INSPECTIONS; and DOES 1 to 25, inclusive.

Plaintiff's Complaint alleges the following causes of
action:

(1) Conversion

– Embezzlement;

(2) Constructive

Fraud;

(3) Breach
of Fiduciary Duty;

(4) Misappropriation
of Trade Secrets;

(5) Intentional
Interference with Prospective Economic Relations;

(6) Accounting;
and

(7) Constructive
Trust

On May 21, 2025, Cross-Complainant HEATHER CHRISTENSEN filed
a Cross-Complaint against Cross-Defendants DEBRA A. COMMERFORD; COMMERFORD
INSPECTIONS, INC; and DOES 1 to 5, inclusive.

On January 28, 2026, Cross-Complainant filed the operative
Second Amended Cross-Complaint ("SACC").

The SACC alleges the following causes of action:

(1) Minimum Wage Violation;

(2) Failure to Pay Overtime
Wages;

(3) Failure to Provide Meal and
Rest Breaks;

(4) Failure to Pay for All
Hours Worked;

(5) Failure to Indemnify for
Business Expenses;

(6) Failure to Pay Final Wages

At Termination;

(7) Failure to Provide Accurate

Itemized Wage Statements;

(8) Failure to Provide Paid

Sick Leave;

(9) Constructive Wrongful

Termination in Violation of Public Policy; and

(10) Unfair Competition

On April 10, 2026, Plaintiff filed the instant motion for a Court Order Compelling Non-Party Witness PROFESSIONAL INSPECTION AND TESTING, INC's ("PIT") Compliance with Plaintiff's Deposition Subpoena for Production of Business Records.

Legal Standard

California Code

of Civil Procedure section 2020.010 permits discovery of non-party witnesses through oral and written depositions. (See CCP § 2020.010(a)(1), (2); Hawkins v. TACA International Airlines, S.A. (2014) 223 Cal.App.4th 466, 476.) A deposition subpoena may command the attendance and testimony of the deponent, the production of business records, or both. (See id., § 2020.020.)

Service of a

deposition subpoena shall be effected a sufficient time in advance of the deposition to provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition.¿ (CCP § 2020.220, subd. (a).)¿ Personal service of any deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies.¿ (CCP § 2020.220, subd. (c).)¿ A deponent who disobeys a deposition subpoena may be punished for contempt without the necessity of a prior order of

the court directing compliance by the witness.¿ (CCP 2020.240.)¿¿

When a nonparty

is served with a deposition subpoena but fails to attend the deposition or refuses to be sworn as a witness, the party that served the subpoena may move for an order directing compliance with the subpoena and imposing other terms or conditions as the judge considers appropriate.¿(CCP 1987.1, subd.

(a).) There is no requirement that the motion contain a meet-and-confer declaration demonstrating a good-faith attempt at informal resolution. (CCP § 1987.1.)

Discussion

On March 31, 2026, Plaintiff served PIT's agent for service of process Ryan McBride with a deposition subpoena for production of business records. On August 14, 2026, PIT served partial responses to Plaintiff's subpoena.

Requests Nos. 1-2

These requests seek PIT's corporate shareholder and board meeting minutes from May 20, 2021, to the present date. On August 14, 2026, PIT produced these records.

Plaintiff argues that the metadata on these documents show that the meeting minutes were created on August 14, 2026. Further, the corporate minutes do not reflect Defendant Heather Christensen's appointment as an officer of the corporation, even though the Statement of Information reflects that Heather Christensen is PIT's secretary. (Murphy Decl., Ex. B.)

PIT is ordered to either (1) produce a verification that the meeting minutes produced are true and accurate, explain why metadata shows the documents were created the same day they were produced, and explain why the corporate minutes do not reflect Heather Christensen's position as secretary or (2) supplemental the response with accurate meeting minutes.

Request No. 3, 10, 13-16:

Request No. 3 seeks: All COMMUNICATIONS between Ryan McBride and HEATHER pertaining to work. That HEATHER was performing for YOUR company

between May 20, 2021, and June 30, 2024.

Request No. 10 seeks: All DOCUMENTS that reflect all work that HEATHER was performing for YOUR company between May 20, 2021, and June 30, 2024.

Request No. 13 seeks: All COMMUNICATIONS between Ryan McBride and HEATHER CONCERNING Debra Commerford between May 20, 2021, and present date.

Request No. 14 seeks: All COMMUNICATIONS between Ryan McBride and HEATHER CONCERNING Commerford Inspections, Inc. between May 20, 2021, and present date.

Request No. 15 seeks: All invoices that HEATHER prepared for YOUR company between May 20, 2021, and June 30, 2024.

Request No. 16 seeks: All DOCUMENTS reflecting COMMUNICATIONS between HEATHER and YOUR customers between May 20, 2021, and June 30, 2024.

PIT objects that this request is overbroad and issued for an improper purpose.

The Court finds that these requests are limited in time and thus not overbroad.

The Court also finds that the request is relevant because Defendant Heather Christensen filed a Cross-Complaint alleging Plaintiff made her regularly work overtime hours, often exceeding twelve hours per day at seven days a week. (SAC ¶ 33.) Plaintiff presents evidence that Defendant Heather Christensen used a PIT email account (Murphy Decl., Ex . A) and that Defendant Heather Christensen is registered as PIT's secretary. Thus, the Court finds these records are relevant to assess Defendant Heather Christensen wage and hour claims.

PIT is ordered to provide responses to these requests.

Regarding Request No. 15, PIT may redact any sensitive financial or identifying information. Similarly, for Request No. 16, PIT may redact any customer identifying information.

Requests Nos. 4-9, 11-12, 20-21:

These requests seek, (1) all employment agreements and independent contractor agreements between Defendant Heather Christensen and PIT from May 20, 2021, to June 30, 2024; (2) all payroll records and time sheets for Defendant Heather Christensen from May 20, 2021, to June 30, 2024; (3) copies of 1099 tax returns and W-2 tax returns from January 1, 2021, to December 31, 2024; (4) copies of all checks issued to Defendant Heather Christensen between May 20, 2021, to June 30, 2024; (5) a copy of Defendant Heather Christensen's employee personnel file between May 20, 2021, to June 30, 2024; (6) evidence that reflects any form of compensation paid to Defendant Heather Christensen between May 20, 2021, and June 30, 2024.

PIT contends these documents do not exist. However, PIT produced a 1099-NEC form indicating that PIT's business address is located at Defendant Heather Christensen's home address. (Murphy Decl., Ex. H, I.) That 1099 form also demonstrates PIT issued a tax return to Defendant Heather Christensen. Further, as shown above, evidence shows Defendant Heather Christensen had a PIT email address and is registered as PIT's secretary.

The Court finds that evidence contradicts PIT's position and thus, PIT is ORDERED to produce responsive documents to these requests.

Request Nos. 17-19:

Request No. 17 seeks: All DOCUMENTS reflecting HEATHER'S appointment as an officer in YOUR company.

Request No. 18 seeks: All DOCUMENTS reflecting HEATHER'S appointment as the agent for service of process in YOUR company.

Request No. 19 seeks: All Documents reflecting HEATHER'S ownership interest in YOUR company including stock certificates issued to her.

PIT contends Defendant Heather Christensen was never intended to be an officer and never had an ownership interest in PIT. However, the Statement of Information that PIT filed with the California Secretary of State lists Heather Christensen as PIT's secretary. (Murphy Decl., Ex. B.) Further,

when Plaintiff initially issued the deposition subpoena, Defendant Heather Christensen was listed as PIT's agent for service of process. (Murphy Decl., Ex. 1.)

The Court finds that evidence contradicts PIT's position and thus, PIT is ORDERED to produce responsive documents to these requests.

Conclusion

Plaintiff's Motion is GRANTED. PIT must produce all documents responsive to Requests for Production Nos. 1 through 21, to the extent they exist, within 45 days of the Court's issuance of this order.